

SOFTWARE-AS-A-SERVICE (SaaS) SUBSCRIPTION & LICENSING AGREEMENT

(Commercially Binding)

Effective Date: 1st May 2025

SERVICE PROVIDER	SUBSCRIBER
Sharma Tech Solutions Pvt. Ltd. Plot 22, HITEC City, Hyderabad – 500081 CIN: U72200TG2020PTC142789 GSTIN: 36AABCS1234F1Z5 Rep. by: Ms. Priya Sharma, CEO	Kapoor & Sons Enterprises Pvt. Ltd. 304, Nehru Place, New Delhi – 110019 CIN: U74999DL2017PTC312456 GSTIN: 07AABCK5678G1Z3 Rep. by: Mr. Vikram Kapoor, Managing Director

Collectively referred to as the "Parties" and individually as a "Party."

RECITALS

WHEREAS, the Service Provider has developed and operates a proprietary cloud-based software platform for legal contract analysis and management (the "Platform");

WHEREAS, the Subscriber wishes to obtain a subscription license to access and use the Platform for its internal business purposes;

NOW THEREFORE, in consideration of the mutual covenants, representations, and agreements set forth herein, and for other good and valuable consideration, the Parties agree as follows:

1. DEFINITIONS

For the purposes of this Agreement, the following terms shall have the meanings ascribed to them below:

- "Platform" means the LexLens AI-powered legal contract analysis software, including all updates, enhancements, and documentation made available by the Service Provider.
- "Subscription" means the right to access and use the Platform during the Subscription Term, subject to the terms herein.
- "Subscriber Data" means all data, documents, contracts, and information uploaded by the Subscriber to the Platform.
- "Authorized Users" means employees or contractors of the Subscriber who are authorized to access the Platform under this Agreement.

- "Confidential Information" means any non-public information disclosed by one Party to the other, whether orally or in writing, that is designated as confidential or that reasonably should be understood to be confidential.
- "Intellectual Property Rights" means patents, copyrights, trademarks, trade secrets, and all other proprietary rights.

2. SUBSCRIPTION LICENSE

2.1 Grant of License. Subject to the terms and conditions of this Agreement, and timely payment of Subscription Fees, the Service Provider hereby grants the Subscriber a limited, non-exclusive, non-transferable, non-sublicensable license to access and use the Platform solely for the Subscriber's internal business operations during the Subscription Term.

2.2 Restrictions. The Subscriber shall NOT, directly or indirectly:

- Sublicense, resell, transfer, assign, or otherwise exploit the Platform or any rights therein to any third party;
- Reverse engineer, decompile, disassemble, or attempt to derive the source code of the Platform;
- Modify, create derivative works, adapt, or translate any part of the Platform;
- Remove or alter any proprietary notices, labels, or marks on the Platform;
- Use the Platform to build a competing product or service;
- Use the Platform in any manner that violates applicable law, including the Information Technology Act, 2000.

2.3 Authorized Users. The Subscriber may permit Authorized Users to access the Platform, provided that (a) the number of Authorized Users does not exceed the limit specified in Schedule A, and (b) the Subscriber remains liable for all acts and omissions of its Authorized Users in connection with the Platform.

3. SUBSCRIPTION FEES AND PAYMENT TERMS

3.1 Subscription Fees. The Subscriber shall pay the Service Provider the fees set out in Schedule A ("Subscription Fees") in advance on a monthly or annual basis, as elected by the Subscriber.

3.2 Invoicing and Payment. The Service Provider shall issue GST-compliant invoices. Payment shall be due within fifteen (15) days of the invoice date. All amounts are in Indian Rupees (INR) and exclusive of applicable taxes.

3.3 Late Payment. Any amounts not paid by the due date shall accrue interest at the rate of 18% per annum (or the maximum rate permitted by applicable law, whichever is lower), compounded monthly from the due date until the date of actual payment.

3.4 Price Escalation. The Service Provider reserves the right to revise Subscription Fees at any time with sixty (60) days' prior written notice. If the Subscriber does not accept the revised fees, it may terminate this Agreement with thirty (30) days' written notice, with fees prorated to the termination date. Continued use after the notice period constitutes acceptance of revised pricing.

3.5 No Refunds. All Subscription Fees paid are non-refundable, except as expressly provided in this Agreement or required by applicable law. The Service Provider shall not issue refunds for partial months or unused subscription periods.

4. DATA OWNERSHIP AND LICENSE TO SUBSCRIBER DATA

4.1 Subscriber Data Ownership. As between the Parties, the Subscriber retains all right, title, and interest in and to Subscriber Data.

4.2 License to Service Provider. The Subscriber hereby grants the Service Provider a worldwide, royalty-free, irrevocable, perpetual license to use, copy, modify, process, adapt, create derivative works from, and distribute Subscriber Data for the purposes of (a) providing the Platform, (b) improving and training the AI models underlying the Platform, and (c) developing new products and services. This license survives termination of this Agreement.

4.3 Anonymized Data. The Service Provider may aggregate and anonymize Subscriber Data and use such anonymized data for any purpose, including commercial purposes, without restriction or compensation to the Subscriber.

5. CONFIDENTIALITY

5.1 Obligations. Each Party agrees to (a) keep the other Party's Confidential Information strictly confidential, (b) not disclose it to any third party without prior written consent, and (c) use it solely for purposes of this Agreement.

5.2 Exclusions. Confidentiality obligations do not apply to information that: (a) is or becomes publicly known through no breach of this Agreement, (b) was rightfully known prior to disclosure, (c) is independently developed without use of Confidential Information, or (d) must be disclosed by law or court order, provided prompt written notice is given.

5.3 Survival. Confidentiality obligations shall survive termination of this Agreement for a period of seven (7) years.

6. SERVICE LEVELS AND AVAILABILITY

6.1 Uptime Commitment. The Service Provider shall use commercially reasonable efforts to maintain Platform availability of 99% measured on a monthly basis, excluding scheduled maintenance windows announced at least 48 hours in advance.

6.2 Service Credits. In the event that Platform availability falls below 99% in any calendar month, the Subscriber's sole and exclusive remedy shall be a service credit equal to 5% of the monthly Subscription Fee for that month. Service credits are non-monetary and may only be applied against future invoices. No service credits shall be issued if the Subscriber is in arrears.

6.3 Exclusions. The uptime commitment does not apply to unavailability resulting from: (a) the Subscriber's acts or omissions, (b) third-party service failures outside the Service Provider's control, (c) force majeure events, or (d) scheduled or emergency maintenance. The Service Provider may conduct emergency maintenance at any time without notice.

6.4 Sole Remedy. The service credits described in Clause 6.2 constitute the Subscriber's sole and exclusive remedy for any Platform downtime or unavailability, regardless of the cause or duration.

7. INTELLECTUAL PROPERTY

7.1 Platform IP. The Service Provider retains all Intellectual Property Rights in and to the Platform, including all software, algorithms, AI models, interfaces, documentation, and improvements thereto. Nothing in this Agreement transfers any ownership of the Platform to the Subscriber.

7.2 Feedback. If the Subscriber provides any suggestions, ideas, enhancement requests, or feedback regarding the Platform ("Feedback"), the Service Provider shall own all rights in such Feedback and may use it without restriction or compensation to the Subscriber.

7.3 Improvements from Subscriber Use. Any improvements, enhancements, or new features developed by the Service Provider arising from or inspired by the Subscriber's use of the Platform shall vest exclusively in the Service Provider.

8. LIMITATION OF LIABILITY

8.1 Exclusion of Consequential Damages. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, OR CONSEQUENTIAL DAMAGES, INCLUDING LOSS OF PROFITS, REVENUE, DATA, BUSINESS, OR GOODWILL, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

8.2 Aggregate Liability Cap. THE SERVICE PROVIDER'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT, OR OTHERWISE, SHALL NOT EXCEED THE SUBSCRIPTION FEES PAID BY THE SUBSCRIBER IN THE THREE (3) MONTHS IMMEDIATELY PRECEDING THE CLAIM. THIS CAP APPLIES REGARDLESS OF THE NUMBER OF CLAIMS.

8.3 Essential Basis. The Parties acknowledge that the limitations in this Clause 8 reflect a reasonable allocation of risk and form an essential basis of the bargain between them.

9. TERM AND TERMINATION

9.1 Term. This Agreement commences on the Effective Date and continues for the initial Subscription Term set out in Schedule A.

9.2 Auto-Renewal. At the end of each Subscription Term, this Agreement shall automatically renew for successive periods equal to the initial Subscription Term, at the then-current Subscription Fees,

UNLESS either Party provides written notice of non-renewal at least ninety (90) days before the end of the then-current term. The Subscriber acknowledges that failure to provide timely notice will result in automatic billing for the renewed term.

9.3 Termination for Cause. Either Party may terminate this Agreement immediately upon written notice if the other Party: (a) materially breaches this Agreement and fails to cure such breach within thirty (30) days of receiving written notice; or (b) becomes insolvent, makes a general assignment for the benefit of creditors, or files for bankruptcy.

9.4 Termination for Convenience. The Subscriber may not terminate this Agreement for convenience during the Subscription Term. The Service Provider may terminate this Agreement for convenience with ninety (90) days' written notice.

9.5 Effect of Termination. Upon termination: (a) all licenses granted hereunder immediately cease; (b) the Subscriber shall pay all outstanding fees for the remainder of the current Subscription Term; (c) the Subscriber may download Subscriber Data within 30 days; after which the Service Provider may delete all Subscriber Data without liability.

10. WARRANTIES AND DISCLAIMERS

10.1 Service Provider Warranty. The Service Provider warrants that the Platform will perform materially in accordance with the documentation under normal use and circumstances.

10.2 Disclaimer. EXCEPT AS EXPRESSLY SET OUT IN CLAUSE 10.1, THE PLATFORM IS PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT WARRANTY OF ANY KIND. THE SERVICE PROVIDER EXPRESSLY DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. THE SERVICE PROVIDER DOES NOT WARRANT THAT THE PLATFORM WILL BE ERROR-FREE, UNINTERRUPTED, OR THAT RESULTS OBTAINED FROM USE OF THE PLATFORM WILL BE ACCURATE OR RELIABLE. AI-GENERATED ANALYSIS IS FOR INFORMATIONAL PURPOSES ONLY AND DOES NOT CONSTITUTE LEGAL ADVICE.

11. INDEMNIFICATION

11.1 By Subscriber. The Subscriber shall indemnify, defend, and hold harmless the Service Provider and its officers, directors, employees, and agents from and against any claims, liabilities, damages, losses, and expenses (including reasonable legal fees) arising out of or in connection with: (a) the Subscriber's use of the Platform in violation of this Agreement; (b) any Subscriber Data; or (c) the Subscriber's violation of applicable law.

11.2 By Service Provider. The Service Provider shall indemnify the Subscriber against third-party claims alleging that the Platform, as provided and used in accordance with this Agreement, infringes any Indian patent, copyright, or trademark — provided the Subscriber promptly notifies the Service Provider of the claim and cooperates fully in the defense.

12. GOVERNING LAW AND DISPUTE RESOLUTION

12.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of India, without regard to conflict of law principles.

12.2 Dispute Resolution. The Parties shall first attempt to resolve any dispute through good-faith negotiation for a period of thirty (30) days. If unresolved, disputes shall be referred to binding arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Hyderabad, Telangana, with a sole arbitrator mutually appointed within fifteen (15) days of the dispute notice. Proceedings shall be conducted in English.

12.3 Jurisdiction. Subject to the arbitration clause, the courts of competent jurisdiction in Hyderabad shall have exclusive jurisdiction over non-arbitrable matters.

13. GENERAL PROVISIONS

13.1 Entire Agreement. This Agreement, together with its Schedules, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior agreements and understandings.

13.2 Amendments. No amendment to this Agreement is effective unless in writing and signed by authorized representatives of both Parties. Notwithstanding the foregoing, the Service Provider may unilaterally amend this Agreement by providing thirty (30) days' written notice to the Subscriber; continued use of the Platform after such notice constitutes acceptance.

13.3 Assignment. The Subscriber may not assign or transfer this Agreement or any rights hereunder without the Service Provider's prior written consent. The Service Provider may assign this Agreement freely, including in connection with a merger, acquisition, or sale of assets.

13.4 Severability. If any provision of this Agreement is found invalid or unenforceable, the remaining provisions shall continue in full force and effect.

13.5 Waiver. No failure or delay by either Party in exercising any right shall constitute a waiver of that right.

13.6 Force Majeure. Neither Party shall be liable for delays or failures in performance resulting from causes beyond its reasonable control, including acts of God, pandemic, war, or government action. The affected Party shall notify the other within five (5) business days. If a force majeure event continues for more than sixty (60) days, the Service Provider may terminate this Agreement without liability.

13.7 Notices. All notices shall be in writing and delivered by email (with read receipt) or courier to the addresses set out in this Agreement. Email notices are effective upon confirmed delivery.

SCHEDULE A — SUBSCRIPTION DETAILS

Parameter	Details
Subscription Plan	Professional Tier
Subscription Term	12 months (1 May 2025 – 30 April 2026)
Subscription Fee	INR 2,49,999 per annum (exclusive of GST)
Payment Schedule	Annual, payable in advance within 15 days of invoice
Authorized Users	Up to 25 Authorized Users
Storage Limit	50 GB of Subscriber Data
Contract Analyses	Up to 500 AI contract analyses per month
Support Level	Business hours email support (Mon–Fri, 9am–6pm IST)
Onboarding	2 onboarding sessions included (1 hour each)
Auto-Renewal	YES — 90-day written notice required to cancel

IN WITNESS WHEREOF

The Parties have executed this SaaS Subscription Agreement as of the Effective Date first written above, each acting through their duly authorized representative.

For SHARMA TECH SOLUTIONS PVT. LTD.	For KAPOOR & SONS ENTERPRISES PVT. LTD.
Signature: _____	Signature: _____
Name: Ms. Priya Sharma	Name: Mr. Vikram Kapoor
Designation: Chief Executive Officer	Designation: Managing Director

Date: ____ / ____ / 2025	Date: ____ / ____ / 2025
Place: Hyderabad	Place: New Delhi

This contract is generated for backend API testing purposes via the LexLens Test Suite. It contains intentionally varied clause risk levels (RED, AMBER, GREEN) to validate AI analysis accuracy across contract types. | github.com/suejal/lexLens